

1825.]

Magnetic Pole.—Law of Patents.

407

west pole is always moving eastward, and the South-east westward. Simple experiments with magnets elucidate this fact clearly.

I believe, Mr. Urban, that little more can be said on the whole of the present important and interesting subject, till the return of the ships of discovery to be sent out, relatively, next summer. I trust that this Country will have the glory of effecting scientific and geographical discoveries, hitherto reflecting so much honour on the British Nation.

Yours, &c. JOHN MACDONALD.

P. S. If the magnetic pole moved in the plane of a meridian, when directly under the pole of the earth, an unheard-of case would occur, as in every part of the whole northern hemisphere there would be *no variation* at such time. This is an additional proof that it *does not* move in this manner. The constant increase and decrease of the variation sets at rest every supposition of movement under one meridian, or in any straight line across meridians. I made the variation at St. Helena, in 1796, as appears in the Philosophical Transactions, 15 deg. 48 min. 34 sec. In 1768 Captain Wallis made it 12 deg. 47 min. The increase in 28 years appears to be 3 deg. 1 min. 34 sec. giving an annual of 6 deg. 29 min. In the northern hemisphere, the average annual increase was 9 deg. 6 min. This shews that the South-east pole moves *slower* than the other, by nearly one third part. On what *data* Churchman makes the period of revolution of the South-east pole 1289 years, he does not explain by any *rationale*.

Captain Parry found a West variation of 89 deg. 18 min. 19 sec. when in latitude 69 deg. 48 min. 10 sec. and longitude 83 deg. 29 min. 27 sec. This shews so far, that the approximated site of the pole is probably near the truth. The investigation of the Hyperborean Coast of America, inclusive of Behring Straits, is now carrying on by land, as was recommended in your former numbers.

In 69 deg. South, and 93 deg. West longitude, the Russian Circumnavigators discovered an island named PETER I. They found a barrier of ice nearly all round the parallel of 69 deg. South latitude. This indicates strongly, the existence of a *terra firma* in high South latitude, to equalise, as it were, the land in both hemispheres.

Amendment of the Law of Patents.

MR. URBAN, *West-square, Nov. 7.*

WHILE some people extol the justice and liberality and wisdom of the British government in granting exclusive patents to the Authors of useful Inventions, others perhaps may be found, who will condemn the whole system, as ungrateful, iniquitous, oppressive, and impolitic.

That the Inventor has a well-founded right to expect both thanks and reward from the publick, can hardly admit even a momentary doubt. Yet, instead of thanks and reward, he is condemned to pay a heavy fine for the bare permission to reap the fruits of his Invention; since, without that dear-bought licence, he is no more at liberty to enjoy them, (if a poor man, unable to contend against superior capital) than a hare is at liberty to browse the grass, while pursued by a pack of hungry hounds.

If—before the British soil had been enriched with the cauliflower, the asparagus, the peach, and the still more truly valuable potatoe—the legislature, in passing laws for the protection of gardens, orchards, and nursery-grounds, should have added the following clause, “Provided, nevertheless, and be it further enacted, that, whenever any person shall have introduced into this country any valuable exotic tree, shrub, plant, or other vegetable, which appears likely to contribute to the delicate enjoyments of the rich, or the comfortable subsistence of the poor; such person shall be obliged to pay into His Majesty’s Exchequer the sum of *one hundred and twenty pounds**, for permission to inclose and secure his ground with walls, hedges, or trenches; and that, if he shall have neglected to pay the sum aforesaid, it may and shall be lawful for all and every person or persons, to demolish and scale his walls, break down his fences, and rob and ravage the ground where such exotic production is propagated or cultivated.—And provided, moreover, that, even when the cultivator shall have paid the aforesaid sum of one hundred and twenty pounds for the above-mentioned permission, he shall not be allowed to enjoy the benefit of it beyond the term of four-

* There are few patents, which do not cost more than that sum.

teen years; at the expiration of which period, his walls shall be demolished, his hedges torn up, and his ground converted into common land"—If (I say) such a clause had been enacted, would not universal mankind—or, at least, the honest portion of them—have raised their hands and eyes in astonishment and indignation, and exclaimed, "Iniquity!"—Yet, how nearly similar is the treatment inflicted on the Inventors of new and useful arts!

But—not to dwell on "odious comparisons"—However just and humane the practice of granting exclusive patents to the Authors of useful inventions—however powerfully that practice may have contributed to the improvement of arts and manufactures in England—it can hardly be doubted that the system of patent-rights is much less favourable to inventive Genius—less productive even to the Treasury—than it might perhaps easily be rendered by the adoption of a different plan.

By the financial regulations which have so greatly enhanced the price of patents, the benefit is almost exclusively confined to opulent persons; an effect, which would excite the less regret, if the inventive faculty, likewise, could, by legislative enactment, be exclusively confined to the more wealthy class. But, since experience confirms the truth of the old adage, that "Necessity is the mother of Invention," and clearly evinces, that the frugal meals of laborious Poverty are *not less* friendly to clearness of conception and acuteness of discovery, than the more sumptuous banquets, whose fumes too often cloud the intellect of pampered Opulence; it may be proper to consider, whether some provision cannot be made for the indigent Inventor, without loss to the Exchequer—if with an increase of revenue, the more desirable.

At present, the poor man, who has made a useful discovery, has little prospect of ever reaping any advantage from it; and, through that circumstance, the publick must often lose the benefit of a valuable Invention; while the Treasury also may be said to lose those sums which it would otherwise derive from new branches of manufacture and commerce.—Unable to pay the very high price of a patent, the Inventor either suffers his idea to pe-

rish unimproved—or, in the hope of assistance, communicates it to some unscrupulous Mammonist, who perhaps robs him of his Invention, and enriches himself by it, without ever bestowing a single shilling on the original author. In other cases, to avoid the risque of such a disappointment, the discoverer keeps his secret locked up for years in his own bosom, in the fond hope that some lucky chance may, at some future day, enable him to take out a patent: but, that happy day never arriving, the Invention dies with the Inventor, and is, together with him, consigned to eternal oblivion.

Not so in France—not so in America, where the acquisition of a patent is placed within the reach of humble Industry;—a wise and humane regulation, so far as the interests of Genius are concerned, and the improvement of arts and manufactures. But the Governments of those countries have either forgotten or foreborne to avail themselves (as they fairly and unobjectionably might) of an additional provision to render even those cheap patent-rights directly and efficiently contributive to the national revenue. The following plan appears (to me, at least) well calculated to accomplish both objects—the benefit of the Inventor, and the benefit of the Treasury—the latter in two distinct ways.

Suppose, that, instead of fourteen years, the duration of the monopoly were, in the first instance, limited to three; and the price of the patent made very moderate—for example, a single guinea. At the expiration of the three years, let the patentee be at liberty to renew his privilege for an equal period, on paying twenty pounds. After the lapse of his second triennial term, let him again have the power of renewal for one hundred pounds: let a third renovation cost one hundred and fifty; and let two hundred be the purchase of a fourth.

If such a plan can with propriety be adopted, a single successful patent will, on the fourth renewal, have yielded to the Treasury a total sum of above three hundred and seventy pounds: poor men will be enabled to bring forward their Inventions, without the risque of being robbed or cheated by the persons to whom they would otherwise be obliged to resort for pecuniary aid: when their projects are really useful, they will reap from them





PAINTING OF KING EDWARD THE CONFESSOR.
IN WESTMINSTER ABBEY.

them sufficient profits to pay into the Exchequer those much larger sums, with less danger and inconvenience, than frequently attend the payment of the present rates: and their success will operate as a powerful stimulus, to rouse the exertions of inventive Genius; whence, instead of one patent now enrolled, there will probably then be a dozen.

Should the Legislature think proper to allow an unlimited power of renewing the patent-right during the life of the Inventor, and (in case of his death within a stated period) a limited faculty of renovation to his heirs, they would perhaps do no more than what were strictly just and reasonable: and, at every such renewal, a new payment might be demanded, which would produce a further increase of revenue.

There are, however, some cases, in which the Exchequer would sustain a loss—or (more properly speaking) be disappointed of a gain—by the cheapness of the original patent: that is to say, when men come forward with Inventions void of utility—with plans which do not meet the public approbation, and for which, of course, they will not renew their patents. Granted—But it is to be hoped that there exists not a single member in the administrative or legislative body, who could be capable of regretting that a poor infatuated projector has not completed the ruin of himself and his family, for the sake of adding a paltry sum to the national treasure.

At all events, since a project may fall in the hands of the original Inventor, and yet prove successful in those of another person, who enjoys the advantages of better connexions, more extensive knowledge of the world, greater industry and perseverance, more favorable locality, and superior resources in point of wealth and credit; provision might be made for such cases, by enacting, that, whenever a patentee refuses to renew his patent, any other person shall be authorised to assume his relinquished right, on giving him previous notice of his intention, and paying a sum of money proportioned to the real or estimated value of the Invention: or, the privilege for the remaining term of years may be sold to the highest bidder. Of the sum accruing in either case, one por-

tion may go into the Treasury, and the residue be allotted to the disappointed projector. But, to prevent undue advantage being taken of a man who may be very willing to renew his patent, but (through the want of present pecuniary resources) unable to do it in due time, it may be enacted, that, on making representation of his case, and giving bond for the fee (to be paid by instalments), he shall be allowed the privilege of renewal.

Suppose, however, that three of four patents should never be renewed, the successful one, pursued to the fourth renewal, would more than compensate the Exchequer for the unsuccessful three: and, as the patents would then be considerably more numerous than at present, the quarter of the aggregate number would probably yield to Government a much greater revenue than it now derives from the whole.

I have more to say on the subject, but shall, for the present, confine myself to the suggestion of a provision, which, if it do not add much to the national finances, will, at least prevent much fraud and extortion.

A great portion of the public entertain an erroneous idea, that no patent is granted, except upon a thorough conviction in His Majesty's bosom, that the proposed invention actually possesses superior and unquestionable merit. But such is not the case; a patent being granted, as a thing of course, to any applicant who chooses to pay for it; unless, indeed, the Invention be in itself objectionable.

Ignorant of this circumstance—and conceiving the word "*Patent*" to imply and realise the "*Acme*" of perfection—the unwary purchaser is induced to pay exorbitant prices for various articles offered to him under that imposing title: and many tradesmen, taking advantage of that disposition, advertise, as *Patent*, many a contemptible production, for which no *patent* has ever been obtained.

To prevent such deception—at once cheating the purchaser, and defrauding the Exchequer—a clause might be introduced into the law, ordaining, that "whoever shall sell, or advertise or offer for sale, as *Patent*, any article, for which a patent has not been actually obtained, shall forfeit a sum equal to double the average price of a patent, and be for-ever debarred from the privilege

vilege of a patent for the contraband mendacious article in question.

[Here it may not be *mal à propos* to observe, that the *Mendicity Society* would render a much more important service to the public, by banishing *Mendacity* from behind the compters, than by hunting *Mendicity* from the streets.]

Yours, &c.

JOHN CAREY.

P. S. Of the refusal of a patent, an instance has occurred within my own knowledge.—While the much-lamented Mr. Perceval was Attorney General, an application was made to him for the grant of a patent, by the inventor of some instrument or machine for *shuffling the cards*, and preventing those tricks which are sometimes practised by gentlemen who play “*the whole game*.” But the patent was refused, on the ground that it would operate as “an encouragement to gambling.”

MR. URBAN,

Nov. 10.

THE following observations on the town of Padstow, in Cornwall, are communicated with the view of throwing additional light on the early history of that place, which has already appeared in the *Gent. Mag.* (part i. p. 320), although the writer cannot but be conscious that a considerable portion of this article does not present that sombre hue of Antiquarian research for which your pages are so deservedly appreciated.

Your Correspondent, “R. G. A.” very properly distinguishes between Patrick the Irish saint, and Petrock the son of the Cumbrian prince; yet the want of a proper regard to this circumstance has frequently involved our Historians in error and contradiction: it is doubtful if the former ever visited Padstow, or even Cornwall; but the life and labours of the latter are established on a much firmer basis.—A fresh ebullition of British spirit called Athelstan to Cornwall nearly nine years after his victory on the borders; and in 981, only 36 years after his visit to Padstow, the Danish pirates committed their ravages on the then flourishing monastery. The re-erection of the Church may be traced to the Fourteenth Century, and some parts even to a much earlier period. We find a memorial in it to Lawrence Merther, vicar, A.D. 1421, in

in a high state of preservation, from the remarkable tenacity of the brass. A building with stone steps and arches near the North quay, which has been appropriated as a dwelling-house, may be added to the chapels enumerated by “R. G. A.”; and also Cradus, a nunnery near Padstow, which was a cell to the monastery of St. Bennet’s at Lanivet.

The port of Padstow must originally have been one of the finest floating harbours in England, but it was irrecoverably injured by the rapid accumulation of sand in the North-west coast of Cornwall about the year 1520 (11th Henry VIII). In its present state, however, vessels of from 500 to 600 tons burthen can shelter themselves in its pier, and with proper caution several sail may be moored in perfect safety within the entrance of the harbour. The sand, which is of a bright yellow colour, is found on examination to be composed of the shelly substances of the ocean reduced to powder by their collision between the waves and rocks; and tradition reports that the driving began in a deluge of sands so violent as in the course of two nights to cover many houses. This is partly confirmed by experience, for the remains of some habitations, with furniture in them, have been discovered. The Cornish Historians thus speak of this calamitous event, and although immediately referring to some neighbouring places, yet their remarks equally apply to the low lands in the parishes of St. Minever and St. Merrin. Leland says in 1540 (Itin. III. 21.): “Most parte of the howses in the peninsula” on which St. Ives stands, “be sore oppressid or overcoverid with sandes, that the stormie windes and rages casteth up thar; this calamite hath continuid ther little above 20 yeres.” And Carew in 1602 (fo. 144), “the light sand carried up by the wind from the sea-shore daily continueth his covering, and marring the land adjoynant, so as the distresse of this deluge drave the inhabitants to remove their church as well as their houses.” Norden also of Leland in 1584 (p. 42), “that of late the sande hath buried much of the landes and howses, and many devises they use to prevent the obsorption of their churche;” and of Perran (p. 68), “the parish is almost drowned with the sea sande, in such sorte as the inhabitantes have been once alrede forced
to